

1 **SENATE FLOOR VERSION**

2 March 6, 2025

3 SENATE BILL NO. 1036

By: Rader of the Senate

4 and

5 Townley of the House

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7
8 An Act relating to ambulance service; creating the
9 Oklahoma Triage, Treat, and Transport to Alternative
10 Destination Act; providing short title; defining
11 terms; requiring coverage for certain services;
providing certain limitations; providing for
noncodification; providing for codification; and
providing an effective date.

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14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. NEW LAW A new section of law not to be
16 codified in the Oklahoma Statutes reads as follows:

17 This act may be known and cited as the "Oklahoma Triage, Treat,
18 and Transport to Alternative Destination Act".

19 SECTION 2. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 6060.11c of Title 36, unless
21 there is created a duplication in numbering, reads as follows:

22 A. As used in this act:
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1 1. "9-1-1 call" means a communication made on behalf of an
2 enrollee indicating that the enrollee may need emergency medical
3 services;

4 2. a. "Alternative destination" means a lower-acuity
5 facility that provides medical services, including,
6 but not limited to:

- 7 (1) a Federally Qualified Health Center,
8 (2) an urgent care center,
9 (3) a physician's office or medical clinic, or
10 (4) a behavioral or mental health care facility,
11 including, but not limited to, a crisis
12 stabilization unit and a diversion center.

13 b. Alternative destination does not include:

- 14 (1) a dialysis center,
15 (2) a hospital,
16 (3) a private residence, or
17 (4) a skilled nursing facility;

18 3. "Ambulance service" has the same meaning as provided by
19 Section 1-2503 of Title 63 of the Oklahoma Statutes;

20 4. "Enrollee" means an individual who is covered by any health
21 benefit plan; and

22 5. "Health benefit plan" means any such policy as provided by
23 Section 4405.1 of Title 36 of the Oklahoma Statutes.
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1 B. On and after January 1, 2026, any insurer that offers,
2 issues, or renews a health benefit plan in this state shall provide
3 coverage for:

4 1. Services provided by an ambulance service provider to:

5 a. treat an enrollee in place, or

6 b. triage, treat, or transport an enrollee to an
7 alternative destination; and

8 2. An encounter between an ambulance service and enrollee that
9 results in no transport of the enrollee.

10 C. The coverage under this section:

11 1. Is subject to the initiation of ambulance service treatment
12 as a result of a 9-1-1 call that is documented in the records of the
13 ambulance service;

14 2. Is subject to health benefit plan deductibles or copayment
15 requirements;

16 3. Does not diminish or limit benefits otherwise allowable
17 under a health benefit plan, even if the billing claims for medical
18 or behavioral health services overlap in time that is billed by the
19 ambulance service that is also providing care; and

20 4. Is subject to any health benefit plan provision that applies
21 to other services covered by the health benefit plan.

22 D. The reimbursement rate for an ambulance service whose
23 operators triage, treat, and transport an enrollee to an alternative
24 destination shall not be less than the minimum allowable

1 reimbursement rate for advanced life support with mileage to the
2 scene.

3 E. This act shall apply to all contracts subject to this
4 section that are entered into or renewed on or after January 1,
5 2026.

6 SECTION 3. This act shall become effective November 1, 2025.

7 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
8 March 6, 2025 - DO PASS
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